

ORDINANCE NO. A 7a

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE GRANTING TO UNITED GAS CORPORATION, ITS SUCCESSORS AND/OR ASSIGNS, THE RIGHT AND FRANCHISE TO CONSTRUCT, LAY, MAINTAIN AND OPERATE PIPE LINES AND GAS MAINS, IN, UNDER, UPON, OVER, ACROSS AND ALONG AND TO USE PRESENT AND FUTURE STREETS, AVENUES, ALLEYS, HIGHWAYS, ROADS, BRIDGES, VIADUCTS, SQUARES, PARKS, STREAMS AND PUBLIC PROPERTIES OF THE CITY OF DECATUR, NEWTON COUNTY, MISSISSIPPI, FOR THE PURPOSE OF TRANSPORTING, DISTRIBUTING AND SELLING GASS (NATURAL AND/OR ARTIFICIAL AND /OR MIXED) FOR ALL PURPOSES FOR WHICH GAS MAY BE USED TO THE MUNICIPALITY AND INHABITANTS OF SAID CITY OF DECATUR, AND TO ANY OTHER PERSON OR PERSONS; PROVIDING FOR MAINS AND PIPES TO BE LAID SO AS NOT TO INTERFERE WITH WATER PIPES OR SEWER PIPES; REQUIRING EXTENSIONS NOT TO EXCEED ONE HUNDRED (100) FEET OF PIPE FOR EACH ADDITIONAL CUSTOMER; REQUIRING SERVICE FURNISHED TO BE FIRST CLASS IN ALL RESPECTS SUBJECT TO REASONABLE RULES AND REGULATIONS; PROVIDING FOR THE RIGHT TO CHARGE DOMESTIC AND COMMERCIAL CUSTOMERS REASONABLE AND COMPENSATORY RATES; PROVIDING THAT THIS ORDINANCE SHALL NOT GRANT EXCLUSIVE RIGHTS OR PROVILEGES; PROVIDING DATE CONSTRUCTION TO START AND FINAL COMPLETION OF SYSTEM, REPEALING ALL OTHER ORDINANCES AND PARTS OF ORDINANCES IN CONFLICT HEREWITH; AND FIXING THE TIME WHEN THIS ORDINANCE SHALL BECOME EFFECTIVE:

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE CITY OF DECATUR, NEWTON COUNTY, MISSISSIPPI:

SECTION 1. “Grantor” shall mean the City of Decatur, Newton County, Mississippi, a municipal corporation; and “Grantee” shall mean United Gas Corporation, a corporation, its successors and /or assigns.

SECTION 2. Grantor does hereby grant unto said Grantee, its successors and/or assigns, a franchise for a period of twenty-five (25) years as hereinafter provided, with full right and privilege to construct, lay, maintain, operate, use, extend, remove, replace and repair in, under, upon, over, across, and along any and all of the present and future streets, avenues, parkways, squares, alleys, thoroughfares, roads, highways, sidewalks, viaducts, bridges, streams, public grounds, public properties and other public places in the City of Decatur, and in any and all streets, territories and areas hereafter annexed to or acquired by and placed within the corporate boundaries of said municipality, a system of pipes, pipe lines, gas mains, laterals, conduits, feeders, regulators, meters, fixtures, connections and attachments and other desirable instrumentalities and appurtenances necessary or

proper for the purpose of transporting, distributing, supplying and selling gas (natural and/or artificial and/or mixed) for heating, lighting, power and for any other purpose for which gas may now or hereafter be used, in and to said municipality and its inhabitants or any other person or persons within or without the corporate boundaries of said municipality.

SECTION 3. Grantee's property shall be so constructed and maintained as not to interfere unreasonably with traffic over the public thoroughfares of said City and same shall be laid in accordance with the lines and grades established by the City; all pipes and mains shall be laid so as not to interfere with any water pipes or sewer pipes located in the City and any damage which may be done to any of the water pipes, sewer pipes, streets, avenues, alleys, public grounds and public places in the City by Grantee in laying or repairing its gas mains and pipes shall be repaired and restored by Grantee, without cost to the City and within a reasonable length of time, to a condition, as nearly as practical, as that which existed prior to the laying or repairing of the gas mains and pipes.

SECTION 4. Grantee shall not be required to run or extend any connecting pipes, pipe lines, service pipes, laterals, and/or to, its distribution system a distance exceeding one hundred (100) feet of pipe for each additional customer.

SECTION 5. The service furnished hereunder to said municipality and its inhabitants shall be first class in all respects considering all circumstances and shall be subject to such reasonable rules and regulations as Grantee may make from time to time. Grantee may require reasonable security for the payment of its bills.

SECTION 6. Grantee shall hold Grantor harmless from all expense or liability for any unlawful or negligent act of Grantee hereunder.

SECTION 7. Grantee shall have the right to charge and collect reasonable and compensatory rates. Grantor agrees that the schedule of rates for residential gas service and commercial gas service, filed on March 5, 1946, with the City of Decatur, the conditions existing as the time this franchise is granted, and that such schedule of rates shall be effective so long as they remain fair and reasonable or changed or altered as provided by law.

SECTION 8. Nothing herein contained shall ever be held or considered as conferring upon Grantee, its successors and/or assigns, any exclusive rights or privileges of any nature whatsoever.

SECTION 9. This ordinance shall be in force and take effect from and after its passage and legal publication and upon the filing of a written acceptance with Grantor by Grantee within sixty (60) days after the date of final passage of this ordinance, and same shall remain and continue in force for a period of twenty-five (25) years from the date of such acceptance.

SECTION 10. If Grantee, its successors and assigns fail to commence construction work on its distribution system on or before January 1, 1947, and fails to complete its distribution system on or before December 31, 1947, this franchise shall become null and void.

SECTION 11. That all ordinances or parts of ordinances heretofore passed in conflict with this ordinance, be and the same are hereby repealed.

Adopted and approved on this the 5th day of March, 1946.